



JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION

SECTION 1: IDENTIFICATION OF THE AGENCY AND THE CONTRACTING ACTIVITY

Department of State Contracting Activity	☒ Office of Acquisitions Management
Requiring Activity	OBO/PDCS/PDC/EUR

SECTION 2: NATURE AND/OR DESCRIPTION OF THE ACTION BEING APPROVED

Krueck and Sexton completed the bridging design in 2017 and are needed for Design Intent Review Services (DIRS) based on their design development, knowledge of site, and specialized knowledge of the project. OBO/PDCS/PDC/EUR requests approval to award on a sole source basis a Firm-Fixed-Price (FPP) task order to Krueck and Sexton for the U.S. Embassy Warsaw Compound Security Upgrade (CSU).

SECTION 3: DESCRIPTION OF SUPPLIES/SERVICES REQUIRED TO MEET THE AGENCY'S NEEDS

The Agency requires Design Intent Review Services (DIRS) for the Warsaw Compound Security Upgrade (CSU) project in Warsaw, Poland to provide design and construction support services during construction phase.

Services included, but are not limited to:

- Reviewing and Responding RFIs, submittals, and REA documents
- Travelling to site attend site walk-through
- Participating in Integrated Design Reviews.

The estimated value for the entire period of performance is \$441,201.

SECTION 4: IDENTIFICATION OF THE STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION

This acquisition is conducted under the authority of 41 USC 3304, as implemented by FAR 6.3 and substantiated by the following:

☒ FAR 6.302-1 – Only one responsible source and no other supplies or services will satisfy agency requirements.

SECTION 5: DEMONSTRATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR THE NATURE OF THE ACQUISITION REQUIRES USE OF THE AUTHORITY CITED

The required office has urgency to acquire an A/E on an expedited timeframe to provide the needed services before the Department's budget submission in March/April 2025. KSP is a pre-qualified Architect/Engineer (A/E) firm for design services. Krueck and Sexton is the original designer of the Warsaw CSU project. They have the project knowledge and the background information to provide support services during construction. By being involved in the bridging design phase, Krueck and Sexton gained expertise of the site constraints, existing conditions, post staffing and operations, technical requirements, and how to incorporate these in construction documents. Selecting another firm will delay the process and the



knowledge gap will put the project at risk. Krueck and Sexton's intimate knowledge of the Warsaw CSU project from their prior task order makes them the only source capable of providing the services

SECTION 6. DESCRIPTION OF EFFORTS TO ENSURE THAT OFFERS WERE SOLICITED FROM AS MANY POTENTIAL SOURCES AS IS PRACTICABLE, INCLUDING WHETHER A NOTICE WAS OR WILL BE PUBLICIZED AS REQUIRED BY FAR SUBPART 5.2 AND, IF NOT, WHICH EXCEPTION UNDER FAR 5.202 APPLIES

OBO/PDCS/PDC does not recommend open-source solicitation for these services because circumstances preclude competition. The requirement will be synopsisized as required by FAR 6.302-1(d)2 and statements of capability considered before determining whether to proceed to award on a sole source basis.

The sole source award will benefit the government and facilitate budget and schedule objectives. Krueck Sexton Associates developed the bridging design for this project. They have unique qualifications and superior knowledge of the project.

SECTION 7. DETERMINATION BY THE CONTRACTING OFFICER THAT THE ANTICIPATED COST TO THE GOVERNMENT IS FAIR AND REASONABLE

The Contractor's proposal will be evaluated against the Independent Government Estimate (IGE) to determine if it is fair and reasonable value to the Government.

SECTION 8. DESCRIPTION OF THE MARKET RESEARCH CONDUCTED (SEE PART 10) AND THE RESULTS OR A STATEMENT OF THE REASON MARKET RESEARCH WAS NOT CONDUCTED

Market research is not applicable to this procurement as this is a task order procurement.

SECTION 9. ANY OTHER FACTS SUPPORTING THE USE OF OTHER THAN FULL AND OPEN COMPETITION

The basis of the sole source justification is due to this being a follow-on task order as implemented in FAR 6.302-1(a)(2)(ii). The original bridging design contract was completed by Krueck and Sexton.

Failure to limit sources would seriously injure the Government because competition would cause unacceptable delays to delivery of the services and products needed and will likely cause duplication of deliverables and fees. The estimated length of the delay is a minimum of 6 months. This estimate is derived from actual timeframes for services and products in the prior task order that another source would need to duplicate to meet the needs of the requiring office and includes additional acquisition time.

This sole source award will benefit the Government and facilitate national security objectives without any delays.

SECTION 10. LISTING OF THE SOURCES, IF ANY, THAT EXPRESSED, IN WRITING, AN INTEREST IN THE ACQUISITION

None

SECTION 11. STATEMENT OF THE ACTIONS, IF ANY, THE AGENCY MAY TAKE TO REMOVE OR OVERCOME ANY BARRIERS TO COMPETITION BEFORE ANY SUBSEQUENT ACQUISITION FOR THE SUPPLIES OR SERVICES REQUIRED

None



SECTION 12. CERTIFICATIONS

All reviews and approvals should be completed in the order listed unless otherwise authorized or required. Tailor this Section based on the elements of the action being requested.

TECHNICAL AND REQUIREMENTS CERTIFICATION (FAR 6.303-2(b))

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein, are complete and accurate to the best of my knowledge and belief.

SIGNATURE:

Name: Gulden Cakar
Title: Project Manager

Date: 1/15/2025

CERTIFICATIONS (Continued)

CONTRACTING OFFICER CERTIFICATION (FAR 6.303-2(a)(12))

I certify that this submission is accurate to the best of my knowledge, and that it contains complete information necessary to enable other officials to make an informed recommendation for approval or disapproval.

SIGNATURE:

Lori Botkin/Samantha Pakuwal
Contracting Officer
Office: A/GA/AM/DMS/FAC/AFD

1/15/2025

SIGNATURE:

Jillian Savage
Division Director
Office: A/GA/AM/DMS/FAC/AFD